



INDIAN POLITY

- **CHIEF MINISTER**
- **COUNCIL OF MINISTERS**

MODULE – 82

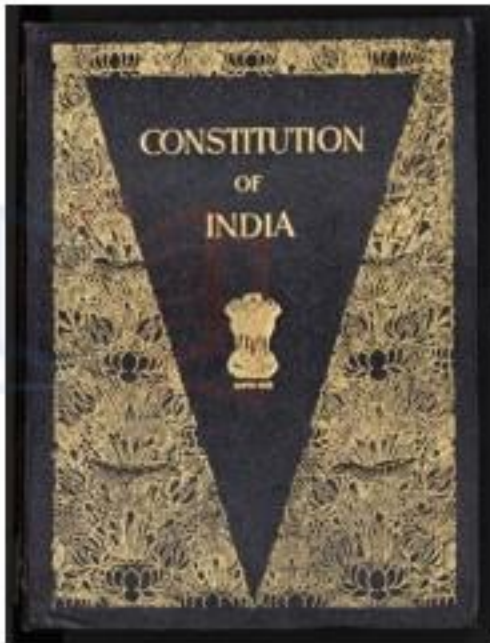


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The governor is the head of the state while the Chief Minister is the head of the government. Thus the position of the Chief Minister at the state level is analogous to the position of prime minister at the Centre.

APPOINTMENT OF CHIEF MINISTER



- 1 The Constitution does not contain any specific procedure for the selection and appointment of the Chief Minister.
- 2 Article 164 only says that the Chief Minister shall be appointed by the governor.
- 3 However, this does not imply that the governor is free to appoint any one as the Chief Minister.

WHAT HAPPENS WHEN THERE IS NO MAJORITY IN THE STATE ASSEMBLY?

- 1 In accordance with the conventions of the parliamentary system of government, the governor has to appoint the **leader of the majority party** in the state legislative assembly as the Chief Minister.



- 2 But, when no party has a clear majority in the assembly, then the governor may exercise his personal discretion in the selection and appointment of the Chief Minister.
- 3 In such a situation, the governor usually appoints the leader of the largest party or coalition in the assembly as the Chief Minister and ask him to seek a vote of confidence in the House within a month.

WHAT HAPPENS WHEN CM DIES IN OFFICE?



Some of the important questions in this context:

1. Does the death of a sitting CM automatically bring the state under Governor's Rule?
2. Who can be picked as replacement in the event of a sitting CM's death?

- ♦ The governor may have to exercise his individual judgement in the selection and appointment of the Chief Minister when the Chief Minister in office dies suddenly and there is no obvious successor.
- ♦ However, on the death of a Chief Minister, the ruling party usually elects a new leader and the governor has no choice but to appoint him as Chief Minister.

CAN A NON-MEMBER BE APPOINTED AS A CM?



A person who is not a member of the state legislature can be appointed as Chief Minister for six months, within which time, he should be elected to the state legislature, failing which he ceases to be the Chief Minister.

It is also permissible for the Governor to appoint a person as CM and then ask him to prove his majority in the floor of the House.

CHIEF MINISTER

OATH OF CM

OATH OF OFFICE

- To bear true faith and allegiance to the Constitution of India.
- To uphold the sovereignty and integrity of India.
- To faithfully and conscientiously discharge the duties of his office.
- To do right to all manner of people in accordance with the Constitution.

OATH OF SECRECY

The Chief Minister swears that he will not directly or indirectly communicate or reveal to any person(s) any matter that is brought under his consideration or becomes known to him as a state minister except as may be required for the due discharge of his duties as such minister

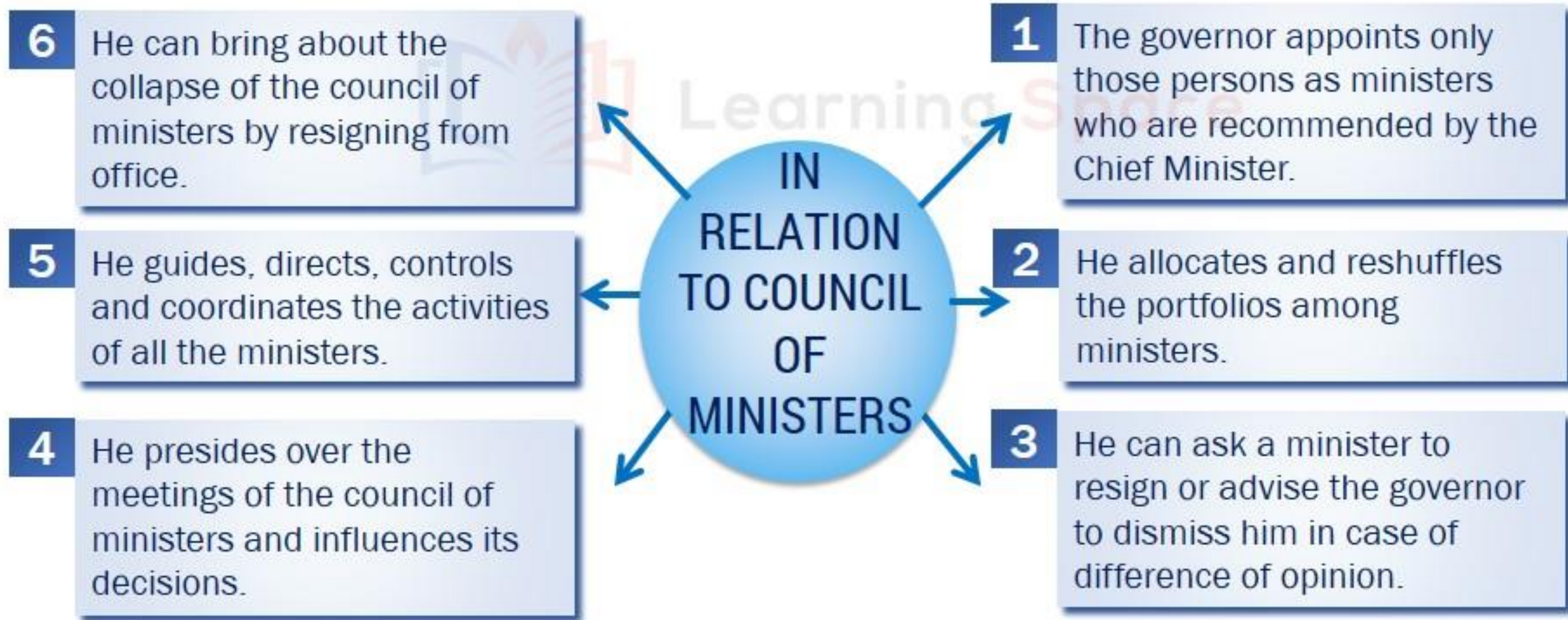
CHIEF MINISTER

TERM OF OFFICE OF CM



- 1** The term of the Chief Minister is not fixed and he holds office during the pleasure of the governor.
- 2** However, this does not mean that the governor can dismiss him at any time.
- 3** He cannot be dismissed by the governor as long as he enjoys the majority support in the legislative assembly.
- 4** But, if he loses the confidence of the assembly, he must resign or the governor can dismiss him.

POWERS AND FUNCTIONS OF CHIEF MINISTER



POWERS AND FUNCTIONS OF CHIEF MINISTER

IN RELATION TO THE GOVERNOR

1

He is the principal channel of communication between the governor and the council of ministers. It is the duty of the Chief Minister:

- ✓ To communicate to the Governor of the state all decisions of the council of ministers relating to the administration of the affairs of the state;
- ✓ To furnish such information relating to the administration of the affairs of the state and proposals for legislation as the governor may call for; and
- ✓ If the governor so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.

2

He advises the governor with regard to the appointment of important officials like advocate general, chairman and members of the state public service commission, state election commissioner, and so on.



POWERS AND FUNCTIONS OF CHIEF MINISTER

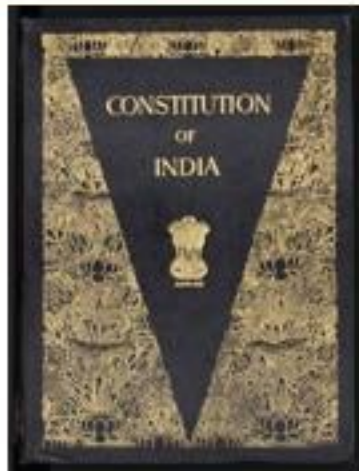
IN RELATION TO STATE LEGISLATURE



- 1** He advises the governor with regard to the summoning and proroguing of the sessions of the state legislature.
- 2** He can recommend the dissolution of the legislative assembly to the governor at any time.
- 3** He announces the government policies on the floor of the house.

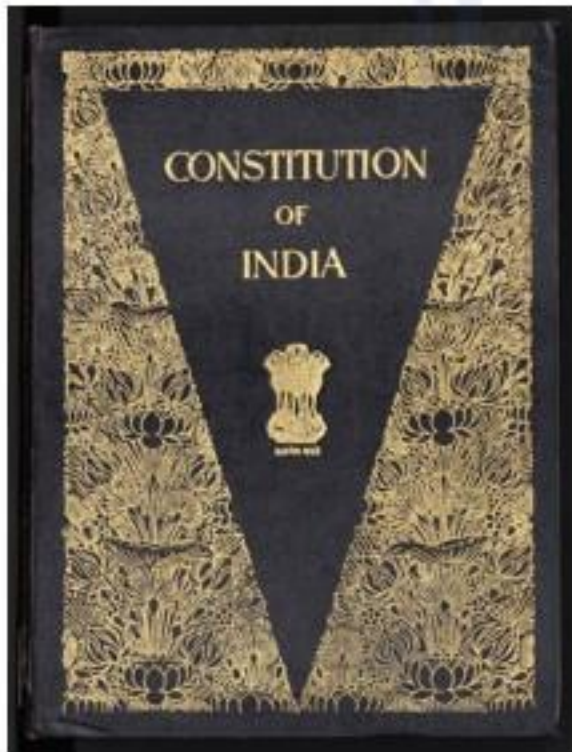
RELATIONSHIP WITH THE GOVERNOR

1 Article 163: There shall be a council of ministers with the Chief Minister as the head to aid and advise the governor on the exercise of his functions, except in so far as he is required to exercise his functions or any of them in his discretion.



- 2 Article 164:**
- a) The Chief Minister shall be appointed by the governor and other ministers shall be appointed by the governor on the advise of the Chief Minister;
 - b) The ministers shall hold office during the pleasure of the governor;
 - c) The council of ministers shall be collectively responsible to the legislative assembly of the state.

RELATIONSHIP WITH THE GOVERNOR



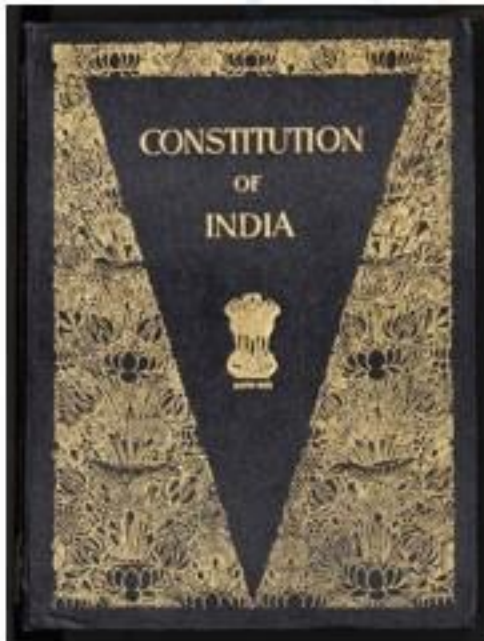
3

Article 167: It shall be the duty of the CM:

- a) To communicate to the governor of the state all decisions of the council of ministers relating to the administration of the affairs of the state and proposals for legislation;
- b) To furnish such information relating to the administration of the affairs of the state and proposals for legislation as the governor may call for ; and
- c) If the governor so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by.

COUNCIL OF MINISTERS

ARTICLE 163 - COUNCIL OF MINISTERS TO AID AND ADVISE GOVERNOR



- There shall be a Council of Ministers with the Chief Minister as the head to aid and advise the Governor.
- If any question arises whether a matter falls within the Governor's discretion or not, decision of the Governor shall be final.
- The advice tendered by Ministers to the Governor shall not be inquired into in any court.

COUNCIL OF MINISTERS

ARTICLE 164 - OTHER PROVISIONS AS TO MINISTERS

- 1** The Chief Minister shall be appointed by the Governor and the other Ministers shall be appointed by the Governor on the advice of the Chief Minister.
- 2** The total number of ministers, including the chief minister, in the council of ministers in a state shall not exceed 15 per cent of the total strength of the legislative assembly of that state.
- 3** A member of either House of state legislature belonging to any political party who is disqualified on the ground of defection shall also be disqualified to be appointed as a minister.
- 4** The ministers shall hold office during the pleasure of the Governor.
- 5** The council of ministers shall be collectively responsible to the state Legislative Assembly.

COUNCIL OF MINISTERS

ARTICLE 164 - OTHER PROVISIONS AS TO MINISTERS

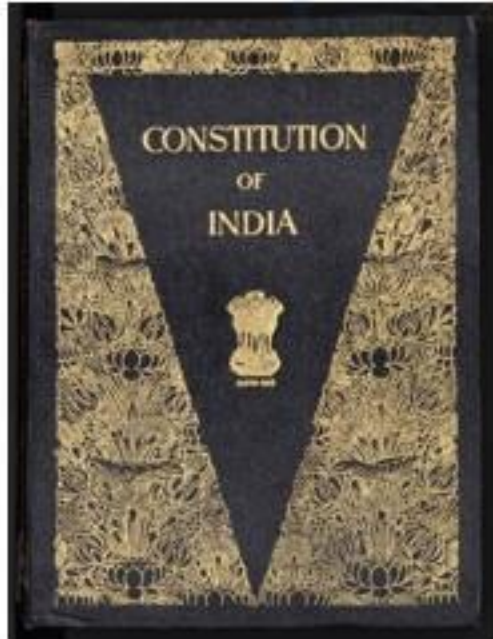


Nagaland Governor PB Acharya administered the oath of office and secrecy to Neiphiu Rio and his 11 Council of Ministers

- 6** The Governor shall administer the oaths of office and secrecy to a minister.
- 7** A minister who is not a member of the state legislature for any period of six consecutive months shall cease to be a minister.
- 8** The salaries and allowances of ministers shall be determined by the state legislature.

COUNCIL OF MINISTERS

ARTICLE 166 - CONDUCT OF BUSINESS OF THE GOVERNMENT OF A STATE



- All executive action of the Government of a State shall be expressed to be taken in the name of the Governor.
- The Governor shall make rules for the more convenient transaction of the business of the government of the state, and for the allocation among ministers of the said business in so far as it is not business with respect to which the Governor is required to act in his discretion.

COUNCIL OF MINISTERS

ARTICLE 167 – DUTIES OF CM

- To communicate to the governor of the state all decisions of the council of ministers relating to the administration of the affairs of the state and proposals for legislation.
- If the governor so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.

ARTICLE 177 – RIGHTS OF MINISTERS AS RESPECT TO THE HOUSES

Every minister shall have the right to speak and take part in the proceedings of the Assembly (and also the Council where it exists) and any Committee of the State Legislature of which he may be named a member. But **he shall not be entitled to vote.**

COUNCIL OF MINISTERS

NATURE OF ADVICE BY MINISTERS

- 1 The nature of advice tendered by ministers to the governor **cannot be enquired by any court.**
- 2 This provision emphasizes the intimate and the **confidential relationship between the governor and the ministers.**
- 3 Except in spheres where the governor is to act in his discretion, the governor has to act on the aid and advice of the council of ministers in the exercise of his powers and functions.
- 4 He is not required to act personally without the aid and advice of the council of ministers or against the aid and advice of the council of ministers.

Wherever the Constitution requires the satisfaction of the governor, the satisfaction is not the personal satisfaction of the governor but it is the satisfaction of the council of ministers.

5 A minister who is a member of one House of the state legislature has the right to speak and to take part in the proceedings of the other House.

6 But, he can vote only in the House of which he is a member.

4 A person who is not a member of either House of the state legislature can also be appointed as a minister.



APPOINTMENT OF MINISTERS

1 The chief minister is appointed by the governor.

2 The other ministers are appointed by the governor on the advice of the CM.

3 This means that the governor can appoint only those persons as ministers who are recommended by the CM.

COUNCIL OF MINISTERS

OATH AND SALARY OF MINISTERS

OATH OF OFFICE

- To bear true faith and allegiance to the Constitution of India,
- To uphold the sovereignty and integrity of India,
- To faithfully and conscientiously discharge the duties of his office, and
- To do right to all manner of people in accordance with the Constitution and the law, without fear or favour, affection or ill-will.

OATH OF SECRECY

The minister swears that he will not directly or indirectly communicate or reveal to any person(s) any matter that is brought under his consideration or becomes known to him as a state minister except as may be required for the due discharge of his duties as such minister.



COUNCIL OF MINISTERS

RESPONSIBILITY OF MINISTERS

COLLECTIVE RESPONSIBILITY

- 1** The fundamental principle underlying the working of parliamentary system of government is the principle of collective responsibility.
- 2** They work as a team and **swim or sink together**.
- 3** When the legislative assembly passes a no-confidence motion against the council of ministers, all the ministers have to resign including those ministers who are from the legislative council.
- 4** The principle of collective responsibility also mean that the **cabinet decisions bind all cabinet ministers (and other ministers)** even if they deferred in the cabinet meeting.
- 5** It is the duty of every minister to stand by the cabinet decisions and support them both within and outside the state legislature.
- 6** If any minister disagrees with a cabinet decision and is not prepared to defend it, **he must resign**.

COUNCIL OF MINISTERS

RESPONSIBILITY OF MINISTERS

INDIVIDUAL RESPONSIBILITY

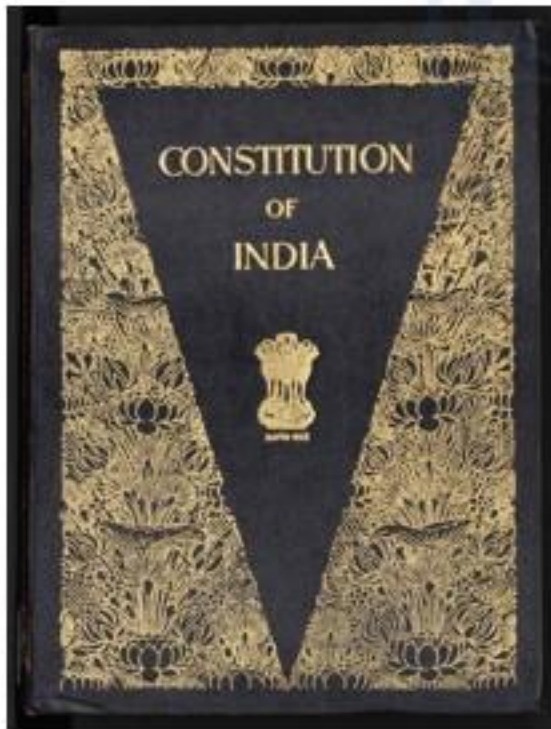
- ◆ Article 164 also contains the principle of individual responsibility.
- ◆ It states that the ministers hold office during the pleasure of the governor.
- ◆ This means that the **governor can remove a minister at a time** when the council of ministers enjoys the confidence of the legislative assembly.
- ◆ But, the governor can remove a minister only on the advice of the chief minister.

NO LEGAL RESPONSIBILITY

- ◆ As at the Centre, there is **no provision** in the Constitution for the system of legal responsibility of the minister in the states.
- ◆ It is not required that an order of the governor for a public act should be **countersigned by a minister**.
- ◆ Moreover, the courts are barred from enquiring into the nature of advice rendered by the ministers to the governor.

COUNCIL OF MINISTERS

COMPOSITION OF THE COUNCIL OF MINISTERS



- 1** The Constitution does not specify the size of the state council of ministers or the ranking of ministers.
- 2** They are determined by the chief minister according to the **exigencies of the time** and requirements of the situation.
- 3** It consists of three categories of ministers, namely, **cabinet ministers, ministers of state, and deputy ministers.**
- 4** The difference between them lies in their respective ranks, emoluments, and political importance.

COUNCIL OF MINISTERS

COMPOSITION OF THE COUNCIL OF MINISTERS

CABINET MINISTERS

The cabinet ministers head the important departments of the state government like home, education, finance, agriculture and so forth.



Cabinet Ministers of AP

MINISTERS OF STATE

- ♦ The ministers of state can either be given **independent charge of departments** or can be attached to cabinet ministers.
- ♦ However, they are not members of the cabinet and do not attend the cabinet meetings unless specially invited when something related to their departments are considered by the cabinet.

COUNCIL OF MINISTERS

COMPOSITION OF THE COUNCIL OF MINISTERS

DEPUTY MINISTER

- ◆ They are **not given independent charge** of departments.
- ◆ They are attached to the cabinet ministers and assist them in their administrative, political and parliamentary duties.
- ◆ They are not members of the cabinet and do not attend cabinet meetings.

DEPUTY CHIEF MINISTER

- ◆ At times, the council of ministers may also include a deputy chief minister.
- ◆ The deputy chief ministers are appointed **mostly for local political reasons**.

COUNCIL OF MINISTERS

CABINET COMMITTEES



- ◆ They are of two types—standing and ad hoc. The former are of a permanent nature while the latter are of a temporary nature.
- ◆ They are set up by the chief minister according to the exigencies of the time and requirements of the situation.
- ◆ Hence, their number, nomenclature and composition varies from time to time.

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